

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session  
DEPARTMENT REVIEW – PASSED LEGISLATION

**BLUE SHEET**

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

**Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.**

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**Department: DEC**

**Date: 5/14/2026**

**Bill Number: HB314**

**Short Title (as it appears on BASIS): ARCH, ENG, SURVEYORS; REG INT DESIGN**

**What action do you recommend the Governor take?**

*Select one.*

☒ SIGN      ☐ VETO      ☐ LWOS

**Action Justification – Why do you recommend the above action?**

*Please be specific.*

The department's interest is limited to Section 28 with the addition of paragraph (15) to AS 08.48.331(a). This specific provision of the bill provides clarity and statutory support of the continued use of the department's long-standing Certified Installer program to install septic systems statewide without the mandate and increased cost of engineers for certain systems of a specific size.

**What does this Bill do?**

*In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?*

The bill, as amended, adds necessary clarification to ensure continued use of department trained Certified Installers to install septic systems for residential and small commercial facilities in Alaska. Additionally, it solidifies that installation of these systems is not strictly limited to members of the Architects, Engineers and Land Surveyor's Board. The department's regulations

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currently align with the bill’s proposed amendment of AS 08.48.331(a)(15), but there have been unsuccessful legal challenges from the board in the past that Certified Installers do not have the necessary credentials to perform septic system installations. The amendment clarifies this work and ensures home and business owners can continue to use Certified Installers to install septic systems without the potential statutory confusion that only licensed professional engineers can provide this service in Alaska at a normally higher cost per system installation.

**Detailed Sectional Analysis**

*The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.*

The department has interest in Section 28, the addition of paragraph (15) to AS 08.48.331(a):

The proposed added paragraph provides needed clarity on the exemption for department trained Certified Installers. Paragraph (15) clearly identifies that Certified Installers authorized by the department are exempt from being members of the Architect, Engineers, and Land Surveyors Board for the installation of onsite wastewater systems with a design flow of less than 1,500 gallons per day.

**Companion or Similar Bills**

*Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.*

Companion legislation: SB246, ARCH, ENG, SURVEYORS; REG INT DESIGN

Sponsor: Senator Claman

No rider bill or provision to Section 28, added paragraph (15)

Similar Legislation: SB54, ARCH, ENG, SURVEYORS; REG INT DESIGN

Sponsors: Senators Claman, Gray-Jackson

Vetoed by Governor

**Support/Opposition of the Bill**

*Please identify names, organizations, titles, and phone numbers of those who testified in support or in opposition of this bill.*

With respect to added paragraph (15) to AS 08.48.331(a), there was no testimony in support or opposition of this specific provision.

**Bill Signing ceremony suggestions (if applicable)**

*Please provide information for consideration for a bill signing ceremony. Information that is*

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*helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.*

None recommended for the amendment applicable to the department.

Commissioner's Signature:  Date: 5/14/2026

*I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.*

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